

Opinion of the Court

with the common law, state courts appeared to regard unanimity as an essential feature of the jury trial.¹⁴

It was against this backdrop that James Madison drafted and the States ratified the Sixth Amendment in 1791. By that time, unanimous verdicts had been required for about 400 years.¹⁵ If the term “trial by an impartial jury” carried any meaning at all, it surely included a requirement as long and widely accepted as unanimity.

Influential, postadoption treatises confirm this understanding. For example, in 1824, Nathan Dane reported as fact that the U. S. Constitution required unanimity in criminal jury trials for serious offenses.¹⁶ A few years later, Justice Story explained in his *Commentaries on the Constitution* that “in common cases, the law not only presumes every man innocent, until he is proved guilty; but unanimity in the verdict of the jury is indispensable.”¹⁷ Similar statements can

¹⁴ See, e.g., *Commonwealth v. Bowden*, 9 Mass. 494, 495 (1813); *People v. Denton*, 2 Johns. Cas. 275, 277 (N. Y. 1801) (*per curiam*); *Commonwealth v. Fells*, 36 Va. 613, 614–615 (1838); *State v. Doon & Dimond*, 1 R. Charlton 1, 2 (Ga. Super. Ct. 1811); see also *Respublica v. Oswald*, 1 Dall. 319, 323 (Pa. 1788) (reporting Chief Justice McKean’s observations that unanimity would have been required even if the Pennsylvania Constitution had not said so explicitly).

¹⁵ To be sure, a few of the Colonies had relaxed (and then restored) the unanimity requirement well before the founding. For example, during a two decade period in the late 17th century, the Carolinas experimented with a non-common law system designed to encourage a feudal social structure; this “reactionary” constitution permitted conviction by majority vote. See Carolina Const., Art. 69 (1669), in 5 Thorpe 2781; Reinsch, *The English Common Law in the Early American Colonies*, in 1 *Select Essays in Anglo-American Legal History* 367, 407 (1907). But, as Louisiana admits, by the time of the Sixth Amendment’s adoption, unanimity had again become the accepted rule. See Brief for Respondent 17.

¹⁶ 6 N. Dane, *Digest of American Law*, ch. LXXXII, Art. 2, § 1, p. 226 (1824).

¹⁷ 2 J. Story, *Commentaries on the Constitution of the United States* § 777, p. 248 (1833).